

Reserved On: 14.08.2024 vs Mamta Devi & Anr on 13 September, 2024

2024:HHC:8549 IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA Cr. Revision No. 403 of 2023 Reserved on: 14.08.2024 .

Date of Decision:13.09.2024

Anil Kumar

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Versus

Mamta Devi & Anr.

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Hon'ble Mr Justice Rakesh Kainthla, Judge.

Whether approved for reporting?1 No For the Petitioner : Mr. Devender Sharma and Mr. Anshul Ghandi, Advocates.

For the Respondents : Mr. Atharv Sharma, Advocate.

_____ Rakesh Kainthla, Judge The present petition has been filed against the order dated 06.01.2023, passed by learned Additional Principal Judge, Family Court, Hamirpur, District Hamirpur, H.P. (learned Trial Court).

Whether reporters of Local Papers may be allowed to see the judgment? Yes.

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2. It has been asserted that the marriage between the petitioner and respondent No. 1 was solemnized on 22.05.2011 as .

per Hindu Rites and customs. Respondent No.2 was born to the parties. Differences arose between the parties due to the uncooperative behaviour and attitude of respondent No.1. She filed a petition

under Section 12 of the Protection of Women from Domestic Violence Act (D.V.Act) in the Court of learned Chief Judicial Magistrate, Hamirpur, H.P., who partly allowed the petition and awarded maintenance of 2500/- each per month to respondents No.1 and 2. He also awarded compensation of 20,000/-. Respondent No.1 filed an F.I.R. No.34 of 2019, dated 26.07.2019 against the petitioner and his parents for the commission of offences punishable under Sections 498-A, 504 and 506 of IPC. Efforts were made to settle the matter before the local Panchayat. The respondents had filed a petition under Section 125 of Cr.P.C. for grant of a maintenance @ 20,000/- per month each.

The petition was allowed by the learned Additional Principal Judge, Family Court, Hamirpur, District Hamirpur, H.P. who awarded maintenance @ 5000/- per month to respondent No.1 and maintenance @ 3000/- to respondent No.2 per month from the 2024:HHC:8549 date of filing of the petition till its disposal. The order is harsh and without any legal basis. Learned Trial Court failed to exercise its .

jurisdiction by addressing the grounds and contentions raised by the petitioner. The petitioner is unemployed and he has no source of income. Respondent No.1 is working as a teacher and she is drawing 10,000/- per month. These facts were not considered by the learned Trial Court. The petitioner is maintaining the respondents, who are residing with him at his home.

paying the school fee and expenditure of respondent No.2. The r He is also petitioner is paying maintenance in terms of the orders passed by the learned Chief Judicial Magistrate. There is no evidence of the income of the petitioner and maintenance was wrongly allowed @ 8000/- per month. Respondent No.1 is not interested in discharging her marital duties; therefore, it was prayed that the present petition be allowed and the order passed by the learned Trial Court be set aside.

3. I have heard Mr Devender Sharma and Mr. Anshul Gandhi, learned counsel for the petitioner and Mr. Atharv Sharma, learned counsel for the respondents.

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4. Mr. Devender Sharma, learned counsel for the petitioner submitted that the learned Trial Court erred in awarding the .

maintenance without any evidence of the income of respondent No.1. Petitioner is unemployed and he cannot pay the maintenance @ 8000/- per month. Therefore, he prayed that the present petition be allowed and the order passed by the learned Trial Court be set aside. He relied upon the judgments of Honnaiah T.H. vs. State of Karnataka & others, Criminal Appeal No. 1147 of 2022 (arising out of SLP (Crl. No. 2021 of 2022) decided on 04.02.2022, Sita Devi Vs. The State of Bihar & Anr. Criminal Revision No. 113 of 2012, decided on 16.04.2012, Dr Dalip Kumar @ Dr Dilip Kumar Sharma @ Dilip Sharma vs. State of Bihar & Anr. In Criminal Miscellaneous No. 6740 of 2016, decided on 02.09.2019, Rajendra Kumar vs. Smt. Rukhmani Bisen, Misc. Criminal Case No. 60364 of 2022, decided on 02.02.2023 and Smt. Sarmistha Dewan Ghosh vs. Shri Milanmoy Dewan, Criminal Revision Petition No. 24 of 2020, decided on 17.02.2021 in support of his submission.

5. Mr. Atharv Sharma, learned counsel for the respondents submitted that the present petition under Section 19(4) of the Family Courts Act 1984 is not maintainable as the order 2024:HHC:8549 granting the maintenance is interlocutory, which cannot be challenged by filing a revision petition. Learned Trial Court had .

considered the maintenance awarded by the learned Chief Judicial Magistrate and there is no infirmity in the order passed by the learned Trial Court. Hence, he prayed that the present petition be dismissed.

6. I have given considerable thought to the submissions made at the bar and have gone through the records carefully.

7. It was laid down in Ashu Jain Vs. State of U.P. and others 2023 STPL 10374 Allahabad that the order granting maintenance can be challenged by filing a revision petition and not by filing a petition under Section 482 of CrPC. It was observed: -

"16. Section 19 of the Act, 1984 clearly provides about the provision of appeal or revision only against the order or decree of the Family Court. The law is settled that special law shall prevail over the general law. Therefore, in light of the provision under Section 19 of the Act, 1984, the only remedy before the applicant is to file a revision under Section 397 Cr.P.C. in case the matter doesn't fall within the exceptions provided by the Apex Court in the matter of Dhariwal Tobacco Products Ltd.(Supra) as well as Prabhu Chawla (Supra).

17. A similar matter was before the Uttarakhand High Court in Ashu Dhiman (supra) and the Court has taken the same view. The relevant paragraph of the aforesaid judgment is quoted hereinbelow:

2024:HHC:8549 "17. In view of the definition of the interlocutory order and the ratio of the judgment supra, this Court is of the view that an order passed under Proviso to sub-section (1) of Section 125 of Cr.P.C.

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rejecting or allowing an application for maintenance, pending proceedings, is not an interlocutory order which adjudicates the rights of the parties to some extent. The revision under Section 397 of Cr.P.C. is maintainable. It has been held that such an order is amenable to revisional jurisdiction of this Court. The powers of the High Court under Section 482 of Cr.P.C. are inherent in nature and could be exercised where the statutory remedy of appeal and revision under the Cr.P.C. is not available. Thus, in view of the findings recorded above that revision against such an order is rmaintainable, an application under Section 482 of Cr.P.C. would not be maintainable. The core issue framed by this Court to deal with the controversy is answered accordingly. Since the criminal misc. applications filed by the applicant(s) under Section 482 of Cr.P.C. are not maintainable, the applicant(s) would be at liberty to avail the remedy of filing revision if so advised.

18. Again, this issue was the subject matter before the Madhya Pradesh High Court in Rajendra Kumar (Supra) and the view of the Court was again the same. The relevant paragraph of the said judgment is quoted hereinbelow:

"18. Considering the above legal position, I am of the considered view that an order of maintenance affects the right of a person drastically and substantially, hence, it cannot be treated as an interlocutory order and criminal revision should be preferred under Section 19(4) of the Family Courts Act against the order passed on the application for interim maintenance by the Family Court."

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19. Therefore, in view of the facts and circumstances of the case as well as judgments discussed hereinabove, the present application is not maintainable."

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8. In Rajendra Kumar Vs. Rukhmani Bisen 2023(1) Crimes 439 a petition was filed against an interim order granting maintenance by the Principal Judge, Family Court. It was held that an order of interim maintenance is not an interlocutory order and revision is maintainable against such order. It was held: -

r to "9. In the case of Sumerchand vs Sandhuran Rani and Others, reported in 1987 Cr.L.J. 1396, Sunil Kumar Sabharwal vs Neelam Sabharwal, reported in 1991 Cr.L.J. 2056 High Court of Haryana and an order dated 15.11.18 passed by the High Court of Uttarakhand in the case of Ashu Dhiman vs Smt. Jyoti Dhiman, Cr. Misc. Application (C-482) No.434/2018, it has been held that an order passed for interim maintenance under provisions of Section 125 of Cr. P.C. is not an interlocutory order, hence, criminal revision petition is maintainable against such order."

9. It was further held that a revision against the order granting maintenance lies under Section 19(4) of the Family Courts Act. It was observed:-

"13. Sub-section (2) of Section 19 of the said Act specifically prohibits any appeal from an order passed under Chapter 9 of the Cr.P.C. which contains only four provisions, i.e., Section 125 to Section 128. Thus, a conjoint reading of sub-section (1) and sub-section (2) of Section 19 of the said Act makes it clear that the appeal would not be maintainable before this Court from an order passed under Chapter 9 of the Cr.P.C. However, it is not as if a party aggrieved by an order passed under any of the provisions of Chapter 9 of the Cr.P.C. is remediless. This is so in 2024:HHC:8549 view of sub-section (4) of Section 19 of the said Act, which provides for the revisionary power specifically qua an order passed under Chapter 9 of the Cr.P.C. making the intent of the legislature quite clear. Once again, the exception carved out is .

that it should not be an interlocutory order and, thus, it would have to be examined as to what is an interlocutory order in the context of Section 125 to Section 128 of the Cr.P.C. for the purpose of Section 19 (4) of the said Act.

14. In the Case of Manish Aggarwal Vs. Seema Aggarwal &Ors., ILR (2013) '1 Delhi 210, Division Bench of Delhi High Court held that remedy of criminal revision would be available against both the interim and final orders under Section 125-128 of Cr.P.C. under sub-Section (4) of Section 19 of the said Act.

iii. The remedy of criminal revision would be available qua both the interim and final order under Sections 125 to 128 of the Cr.P.C. under sub-section (4) of Section 19 of the said Act. iv. As a measure of abundant caution, we clarify that all orders as may be passed by the Family Court in the exercise of its jurisdiction under Section 7 of the said Act, which have the character of an intermediate order and are not merely interlocutory orders, would be amenable to the appellate jurisdiction under sub- section (1) of Section 19 of the said Act.

15. In the case of Shah Babulal Khimji Vs. Jayaben D. Kanta & Am. AIR 1981 SC 1786, the Apex Court has observed as below: --

"11.....The Apex Court laid down that there can be three kinds of judgments. The relevant portion of the said judgment to that effect is as follows: --

(1) A final judgment--A judgment which decides all the questions or issues in controversy so far as the trial Judge is concerned and leaves, nothing else to be decided. This would mean that by virtue of the judgment, the suit or action brought by the plaintiff is dismissed or decreed in part or in full. Such an order passed by the trial Judge 2024:HHC:8549 indisputably and unquestionably is a judgment within the meaning of the Letters Patent and even amounts to a decree so that an appeal would lie from such a judgment to a .

Division Bench.

(2) A preliminary judgment--This kind of judgment may take two forms--(a) where the trial Judge by an order dismisses the suit without going into the merits of the suit but only on a preliminary objection raised by the defendant or the party opposing on the ground that the suit is not maintainable. Here also, as the suit is finally decided one way or the other, the order passed by the trial Judge would be a judgment finally deciding the cause so far as the trial Judge is concerned and, therefore, appealable to the larger Bench, (b) Another shape which a preliminary judgment may take is that where the trial Judge passes an order after hearing the preliminary objections raised by the defendant relating to maintainability of the suit, e.g., bar of jurisdiction, res judicata, a manifest defect in the suit. Absence of notice under Sec. 80 and the like, and these objections are decided by the trial Judge against the defendant, the suit is not terminated but continues and has to be tried on merits but the order of the trial Judge rejecting the objections doubtless adversely affects a valuable right of the defendant who, if his objections are valid, is entitled to get the suit dismissed on

preliminary grounds. Thus, such an order though it keeps the suit alive, undoubtedly decides an important aspect of the trial which affects a vital right of the defendant and must, therefore, be 2024:HHC:8549 construed to be a judgment so as to be appealable to a larger Bench.

(3) Intermediary or interlocutory judgment:

Most of the interlocutory orders which .

contain the quality of finality are clearly specified in clauses (a) to (w) of Order 43, Rule 1 and have already been held by us to be judgments within the meaning of the Letters Patent and, therefore, appealable. There may also be interlocutory orders which are not covered by Order 43, Rule 1 but which also possess the characteristics and trappings of finality in that, the orders may adversely affect a valuable right of the party or decide an important aspect of the trial in an ancillary proceeding. Before such an order can be a judgment the adverse effect on the party concerned must be direct and immediate rather than indirect or remote..."

16. In the case of Aakansha Shrivastava Vs. Virendra Shrivastava & Anr. 2010 (3) MPLJ 151 Division Bench of the Madhya Pradesh High Court has held as under: --

"17. Interim maintenance had been granted under Section 125 Cr.P.C. and the issue arose whether a revision petition could be preferred against that order, as it was alleged to be interlocutory in nature. It was held that the order of interim maintenance was an intermediate or quasi-final order. An analogy was drawn from Section 397 (2) of the Cr.P.C. and the pronouncement of the Supreme Court in Amarnath & Ors. Vs. State of Haryana & Ors. AIR 1977 SC 2185 qua the said provision was relied upon. Thus, an order which substantially affects the rights of an accused and decides certain rights of the parties ' was held not to be an interlocutory order so as to bar revision."

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17. In the case of Aakansha Shrivastava (Supra) the Division Bench of this Court further held that any order which affects the right of a person drastically and substantially, cannot be treated as interlocutory order and criminal revision can be .

preferred under Section 19(4) of the Family Courts Act against the order passed on the application for interim maintenance by the Family Court. Furthermore in the Case of Rajesh Shukla Vs. Meena Shukla 2005(2) MPLJ 483, it has been held by the Full Bench of this Court while passing of maintenance under Section 125 of Cr.P.C. in the exercise of powers, against such order under Section 19(4) of Cr.P.C. criminal revision should be registered. In another case Nasreen Begum Vs. The State of Jharkhand & others 2006 CH.L.J. 326 has held that Section 19(4) of the said Act makes special provision of revision with regard to orders passed under Section 125 of Cr.P.C. and thus revisions would lie.

18. Considering the above legal position, I am of the considered view that an order of maintenance affects the right of a person drastically and substantially, hence, it cannot be treated as an interlocutory order and criminal revision should be preferred under Section 19(4) of the Family Courts Act against the order passed on the application for interim maintenance by the Family Court."

10. Hence, the submission that the order granting interim maintenance is interlocutory which cannot be assailed by filing a revision is not acceptable.

11. A perusal of the order passed by the learned Trial Court shows that it was noticed that respondent No.1 is the legally wedded of the petitioner and respondent No.2 is the son of the petitioner. It was noticed that an amount of 2500/- was granted. Judgment of Hon'ble Supreme Court in Rajnesh vs Neha Anr. AIR 2021 SC 569 2024:HHC:8549 was noticed and it was held that the person can claim maintenance under different provisions but she had to disclose the maintenance .

obtained by her. In the present case, respondent No.1 had disclosed maintenance awarded by the learned Chief Judicial Magistrate, Hamirpur, District Hamirpur, H.P. Hence, maintenance of 3000/-

was awarded to respondent No. 2 and maintenance of 5000/- was awarded to respondent No.1. The maintenance awarded by the learned Chief Judicial Magistrate, Hamirpur, H.P. was ordered to be set off from the maintenance awarded learned Trial Court.

12. The respondent asserted that the petitioner was earning 50,000/- as salary and 75,000/- from all the sources. The petitioner asserted in his reply that he was doing the labour work and was earning 10,000/- per month; however, the learned Trial Court did not record any findings on which version was correct and what is the income of the petitioner. The petitioner has filed his affidavit of assets, income and expenditure in which he had claimed his income as 10,000/- per month (against column No. 10) by working as a labour. He had disclosed his income of 200/- as agriculture income (against column No. 43). He had shown a Kisan Credit Card Loan 70,000/- (against column No. 56(e)).

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13. Respondent No.1 had not even filed her affidavit of assets, income and expenditure as per the judgment of the Hon'ble .

Supreme Court in Rajnesh's case (supra). Thus, the learned Trial Court had passed an order without looking into the financial capacity of the present petitioner. The Hon'ble Supreme Court ordered in Rajnesh (supra) that the Courts shall direct the parties to file affidavits disclosing their assets. It was held by this Court in Onkar Sharma vs State of Himachal Pradesh and others 2023 STPL 3064 H.P., that the directions are mandatory and are required to be complied with in letter and spirit. It was observed:

"7. Hon'ble Supreme Court of India in Rajneesh Versus Neha and another (supra) has been pleased to lay down complete Guidelines with regard to the adjudication of the maintenance applications. As has been rightly pointed out by learned counsel for the petitioner, in para129 of the judgment, the Hon'ble Supreme Court has been pleased to hold that with regard to payment of interim maintenance, affidavits of Disclosure of Assets and Liabilities annexed as Annexures I, II and III along with the judgment as may be applicable, shall be filed by both the parties in all maintenance proceedings including pending proceedings before the Courts mentioned therein. It appears that while passing the order with regard to the grant of interim maintenance, the learned Court below has not adhered to the said directions issued by the Hon'ble Supreme Court of India. The directions being mandatory, the Courts are bound to both adhere to them as well as implement them. Any dereliction in this regard by the Courts concerned does violence to the judgment passed by the Hon'ble Supreme Court both in letter as well as spirit."

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14. It was held by this Court in Kamlesh Thakur vs Divya Jyoti 2023 STPL 13318 HP, that where the directions contained in Rajnesh .

(supra) were not complied with, the matter is to be remitted to the learned trial court for ensuring compliance. It was observed: -

6. In the instant case, the perusal of the record reveals that the learned trial Court has not called upon both parties to file their affidavits of disclosure of assets and liabilities and had awarded interim maintenance in favour of the respondent in the sum of Rs. 5,000/- per month without calling for the affidavits of disclosure of assets and liabilities as per the directions of the Hon'ble Supreme Court.

7. Hence, in view of the directions/guidelines issued by the Hon'ble Supreme Court and also in view of the facts and circumstances of the present case, the matter deserves to be remanded back to the learned trial Court.

8. Accordingly, the matter is remanded back to the learned trial Court to decide the same afresh after calling both parties to file their affidavits of disclosure of assets and liabilities in accordance with the directions/guidelines issued by the Hon'ble Supreme Court in Rajnesh's case (supra). The parties are directed to appear before the learned trial Court on 21st November 2023.

15. These judgments are binding upon this Court. Hence, there is no option but to remand the matter to the learned Trial Court to ensure compliance with the judgment of the Hon'ble Supreme Court in Rajnesh (supra) and thereafter to decide the matter afresh as per the law. Consequently, the present petition is allowed, order dated 06.01.2023, passed by the learned Trial Court is set aside and the 2024:HHC:8549 matter is remanded to the learned Trial Court for a fresh decision

after taking the affidavit of applicant/respondent No.1 on record.

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16. The parties through their respective counsel are directed to appear before the learned Trial Court on 30th September, 2024.

17. A copy of the order and record of the learned Trial Court be transmitted to it to proceed further with the case.

18. The petition stands disposed of, so also the pending application(s), if any.

(Rakesh Kainthla) Judge 13th September, 2024 (ravinder)